REPUBLIC OF CAMEROON

PEACE - WORK - FATHERLAND

DECREE No.2023/08473/PM OF 23 NOV 2023 to lay down conditions for interconnection, access to electronic communications open to the general public and infrastructure sharing.-

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;
Mindful of Law No. 98/013 of 14 July 1998 relating to competition;
Mindful of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015;
Mindful of Law No. 2011/012 of 6 May 2011 to protect consumers in Cameroon;
Mindful of Decree No. 92/089 of 4 April 1992 to specify the duties of the Prime Minister, Head of Government, as amended and supplemented by Decree No. 95/145 a of 4 August 1995;
Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;
Mindful of Decree No. 2011/410 of 9 December 2011 to appoint members of Government;
Mindful of Decree No. 2012/512 of 12 November 2012 to organise the Ministry of Posts and Telecommunications;
Mindful of Decree No. 2019/001 of 4 January 2019 to appoint a Prime Minister, Head of Government;
Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;
Mindful of Decree No. 2020/727 of 3 December 2020 to lay down the reorganization and functioning of the Telecommunications Regulatory Board,

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

HEREBY DECREES AS FOLLOWS:

CHAPTER I
GENERAL PROVISIONS

ARTICLE 1 - **(1)** This Decree lays down conditions for interconnection, access to electronic communications networks open to the public and infrastructure sharing.

(2) It is issued pursuant to the provisions of Section 48 of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon, as amended and supplemented by Law No. 2015/006 of 20 April 2015.

ARTICLE 2.- For the implementation of this Decree, the following definitions shall apply:

1. **Access:** providing electronic communications network elements or services to an operator for the provision of electronic communications services by the said operator;
2. **TRB:** Telecommunications Regulatory Board;
3. **Beneficiary:** an applicant who is granted interconnection services, access to electronic communications networks open to the public and infrastructure sharing, or one of these services only;
4. **Interconnection and access catalogue:** technical and pricing offer for interconnection and access published by operators of electronic communications networks open to the public;
5. **Infrastructure sharing catalogue:** technical and pricing offer published by operators providing infrastructure sharing services in support of electronic communications networks;
6. **Physical co-location:** service offered by an operator of a public electronic communications network, consisting of making infrastructure available to other operators, including premises, so that they can install and, where applicable, operate their equipment there;
7. **Applicant:** an applicant for interconnection, access to electronic communications networks open to the public and infrastructure sharing, or for one of these services only;
8. **Essential requirements:** resources necessary to guarantee, in the general interest: the security of networks, of personnel operating electronic communications networks, and of users; the protection of networks and in particular of exchanges of associated control and management information; compliance with limits on exposure to electromagnetic radiation and electromagnetic compatibility; the interoperability of services and terminal equipment; the protection of personal data and, where appropriate, the proper use of radio spectrum;
9. **Interconnection:** special form of access consisting of the physical and logical linking of public electronic communications networks used by the same or a different operator, in order to enable users to communicate with each other or to access services provided by another operator;
10. **Alternative infrastructures:** installation or set of installations operated by public service dealers and capable of ensuring or contributing to ensuring either the transmission or the transmission and routing of communications signals;
11. **Passive infrastructure:** infrastructure used to host electronic communications networks, in particular overhead and underground civil engineering lines (ducts, conduits, tunnels, supply, facade pathways, poles and overhead pathways); premises, cabinets and technical rooms; masts and towers; cables, connection elements, electrical power supply elements (generator, energy bay, batteries, solar systems, inverters, rectifiers, etc.); air-conditioning elements and security elements.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

12. **Roaming**: a service enabling communications to be transferred from one allocation network to another, while keeping the same telephone number, or enabling subscribers to have access to one or more satellite systems;

13. **Interconnection link:** transmission link connecting the point of presence of a third party operator to the switch open to interconnection of a public electronic communications network operator;

14. **Access link:** transmission link connecting the point of presence of a third party operator to the network of an operator of an electronic communications network open to the public;

15. **Operator:** natural or legal person operating an electronic communications network open to the public or providing an electronic communications service to the public;

16. **Electronic communications network operator:** a person holding a concession or licence for the operation of an electronic communications network open to the public or for the provision of electronic communications infrastructure services;

17. **Dominant operator:** operator of an electronic communications network open to the public whose market share (percentage of revenue or traffic of this operator in relation to the revenue or traffic of all operators) on the market segment in question is equal to or greater than a percentage to be determined by the TRB;

18. **Infrastructure sharing:** provision of easements, equipment, rights-of-way, civil engineering structures, trunk lines, ducts and high points that may be used by legal entities governed by public law and electronic communications network operators for the installation and operation of equipment;

19. **Point of interconnection:** place where a network operator sets up interface equipment enabling interconnection with operators of other networks;

20. **Access point:** physical location where several networks connect to exchange traffic using switching infrastructures;

21. **Resilience of telecommunications networks:** the ability of a network to guarantee that customers can receive telecommunications services even when one or more links or network elements are out of order;

22. **Related facilities:** facilities associated with the provision of unbundled access to the local loop, including co-location, connecting cables and relevant IT systems to which access is necessary to enable a beneficiary to provide services on a competitive and fair basis;

23. **Value-added service:** service offered to the public via public electronic communications networks by means of computer systems allowing access to data relating to specific domains with a view to consulting or exchanging them;

24. **Transit service:** service provided by an operator consisting of routing the traffic (Voice, SMS, Data) of subscribers of a third party operator from/to the point of interconnection to/from the points of interconnection of the other concession operators;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

25. **Cross-subsidisation:** where an operator subsidises the price of a service for which it is in competition in one market segment by the price of a service that it offers in another market segment.

ARTICLE 3 - Interconnection and access services shall comply with the following rules:

- the routing of electronic communications terminating at interconnection or access points must have the same quality of service as that of electronic communications emanating from the network offering interconnection or access;
- the quality requirements for the maintenance and operation of interconnection or access equipment must be the same as those for the network providing interconnection or access.

ARTICLE 4 - **(1)** Infrastructure sharing services shall comply with the following rules:

- availability requirements, particularly in terms of energy, must be the same as those of the network offering the shared infrastructures, where applicable;
- site health requirements;
- public health, town planning and environmental requirements.

(2) Infrastructure sharing services shall concern existing infrastructures and those under construction.

ARTICLE 5.- **(1)** The TRB shall draw up a list of quality indicators for interconnection and access services for electronic communications networks open to the public and a list of quality indicators for infrastructure sharing services.

(2) The list of quality indicators for interconnection and access services for electronic communications networks open to the public shall include in particular:

- the number and duration of interruptions to interconnection or access links;
- the time taken to rectify faults on interconnection or access links;
- the efficiency rate of calls using interconnection or access services;
- the rate of blocking and interruption of electronic communications within the call origination network and within the electronic communications termination network.

(3) The list of quality indicators for infrastructure sharing services shall include in particular:

SERVICE DE L'ENREGISTREMENT
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- the on-site energy availability rate;
- the rate of occupancy or use of infrastructure open to sharing;
- the frequency with which sites are cleaned, including the dismantling and removal from the said sites of equipment no longer in use to electronic equipment waste processing centres;
- quality indicators relating to public health, town planning and the environment in accordance with the regulations in force.

(4) Operators shall be required to fill in the indicators referred to in paragraphs 2 and 3 above, and to transmit them in the form and within the time limits prescribed by the TRB.

(5) Any deterioration in the quality of interconnection, access and infrastructure-sharing services observed by the TRB shall entail the application of penalties provided for by the texts in force.

ARTICLE 6 - **(1)** Operators providing interconnection, access or infrastructure-sharing services shall be required to communicate to third-party operators the same pricing information as that provided to the beneficiaries with whom they have contracted.

(2) Anti-competitive practices shall be prohibited, notably unjustified preference or discrimination by operators.

ARTICLE 7 - **(1)** The TRB shall adopt and publish the technical standards and specifications with which operators shall comply in order to ensure compliance with the essential requirements and quality of service.

(2) In the absence of technical specifications adopted and published by the TRB, the parties may freely determine the interfaces, subject to compliance with the standards recommended by the International Telecommunication Union or drawn up by any other standardisation body and accepted by the TRB.

(3) The TRB shall be consulted before an operator implements new standards.

ARTICLE 8 - **(1)** Operators shall specify, in their interconnection and access agreements, as well as in their infrastructure sharing agreements, all the measures necessary to guarantee compliance with the essential requirements, notably:

- network security;
- interoperability of services, including those required to guarantee end-to-end quality of service;
- protection of personal data relating to privacy and confidentiality of information processed, transmitted or stored;
- availability of energy;
- availability of air conditioning.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(2) Operators shall specify in their agreements, measures to be taken to guarantee continued interconnection or access to electronic communications networks and services in the event of network failure or force majeure.

ARTICLE 9 - **(1)** Interconnection or access points shall be defined in the catalogues of operators, who shall be required to comply with the provisions of their specifications.

(2) Operators shall use interfaces that comply with the standards approved by the TRB.

(3) Before their actual implementation and at the request of one of the parties, interconnection or access interfaces shall be subject to on-site tests, defined and carried out jointly by the two operators.

(4) Where interconnection and access tests are not carried out under the technical conditions and within the deadlines specified, either party may refer the matter to the TRB.

(5) When one of the operators wishes to use an interconnection or access interface that is not included in its interconnection and access catalogue, or to supplement the specifications of an interface in the interconnection and access catalogue, it shall communicate the corresponding technical specifications and services to the TRB.

(6) The TRB shall examine and approve the additions to the specifications referred to in paragraph 5 above, under the same conditions and in the same form as those applicable to the interconnection and access catalogue. It may publish these additions to the specifications in order to safeguard the principle of non-discrimination. It may also do so where such publication is of general interest to the community of operators.

ARTICLE 10 - (1) Network access shall consist of making resources or services available to another operator with a view to providing electronic communications services, under conditions defined by the regulations in force.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(2) It covers notably:

- network elements, associated resources and possibly the connection of equipment by authorised fixed or mobile means;
- physical infrastructure, including buildings, ducts and masts;
- relevant software systems, including operating assistance;
- call number conversion or systems offering equivalent functionality;
- authorised fixed and mobile systems;
- virtual network services.

ARTICLE 11 - (1) Cross-subsidies shall be prohibited, without prejudice to compensation for damages suffered by competitors.

(2) The TRB shall assess damages based on the interconnection surplus unduly captured by the defaulting operator.

ARTICLE 12 - Operators shall provide interconnection and access under objective, transparent and non-discriminatory conditions, even to their own departments, subsidiaries or partners.

ARTICLE 13 - Infrastructure sharing services shall be provided under the conditions mentioned in article 12 above.

ARTICLE 14 - Operators shall be required to comply with the standards approved by the TRB for the installation of their network elements on the facilities or structures of other operators.

CHAPTER II

PROVISIONS RELATING TO INTERCONNECTION AND ACCESS

SECTION I

REQUEST AND OBLIGATION FOR INTERCONNECTION AND/OR ACCESS

ARTICLE 15 - Operators providing interconnection and access shall grant, under objective, transparent and non-discriminatory conditions, all requests for interconnection and/or access.

ARTICLE 16 - **(1)** Requests for interconnection and/or access shall be sent to the operator offering interconnection and/or access by registered letter or by any other means in writing, with a copy to the TRB, in duplicate, each comprising:

- the information form, duly filled, signed and stamped at the rate in force;
- a copy of the applicant's operating licence.

(2) The information sheet referred to in paragraph 1 above shall be published in advance by the TRB and shall contain the following information:

- company name or first and last names;
- excerpt from the Trade and Personal Property Credit Register;
- full address;
- the interconnection and/or access services requested;
- designation of the premises and description of the interconnection and/or access services requested;
- the planned date of implementation.

(3) For each request received, the operator providing interconnection shall be required to send a letter acknowledging receipt to the applicant, with a copy to the TRB, within five (5) working days of receipt of the request.

ARTICLE 17 - **(1)** Operators of electronic communications networks open to the public who receive a request for interconnection and/or access shall have a maximum period of thirty (30) days, as from the issue of the acknowledgement of receipt referred to in paragraph 3 of Article 16 of this Decree, to agree with the applicant on the technical, financial and administrative terms prior to the implementation of interconnection and/or access.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(2) When defining the terms and conditions referred to in paragraph 1 above, the operator providing the interconnection may request additional information from the applicant. In all cases, the processing time may not exceed forty-five (45) days from the deadline stipulated in paragraph 3 of Article 16 of this Decree.

(3) The technical, financial and administrative terms and conditions prior to the implementation of interconnection and/or access shall be set out in a draft agreement drawn up in accordance with the provisions of this decree and initialled by the two parties at the end of the periods laid down in paragraph 2 above.

(4) Each party shall be required to send the initialled draft agreement to the TRB for approval within a week, by registered letter with acknowledgement of receipt or by any means in writing.

ARTICLE 18 - (1) The TRB shall have thirty (30) days to act on the draft agreement referred to in paragraph 3 of Article 17 above.

(2) The TRB may request additional information from the parties or examine amendments to be incorporated into their agreement. In this case, the parties shall have fifteen (15) days to respond to the TRB's requests. If they fail to do so, they shall be subject to the penalties provided for by the regulations in force.

(3) Where additional information or modifications are required, the time limit set out in paragraph 1 above shall be extended to sixty (60) days.

ARTICLE 19 - In the event of a reasoned refusal of approval by the TRB, the agreement may not be signed.

ARTICLE 20 - (1) The operator providing interconnection and/or access shall have a period of thirty (30) days from receipt of the agreement approved by the TRB, including the test period, to sign the agreement and establish the interconnection and/or access links. After this period, it shall be liable to the penalties provided for in Section 66 et seq. of Law No. 2010/013 of 21 December 2010 governing electronic communications in Cameroon.

(2) Notwithstanding the provisions of paragraph 1 above, for technical reasons approved by the TRB, the time required to establish interconnection and/or access links may be extended to sixty (60) days non-renewable.

ARTICLE 21 - The TRB shall ensure that interconnection and access are established within the time limits prescribed by this Decree.

ARTICLE 22 - The TRB may, if necessary, request, subject to penalties per day of delay, that interconnection or access be carried out immediately pending the conclusion of an interconnection or access agreement, if it deems it urgent to act in order to preserve competition and protect the interests of users.

ARTICLE 23 - The TRB may require the parties to amend the interconnection and access agreements, within a period which may not exceed sixty (60) days, particularly when the conditions of competition and/or interoperability of the networks are not guaranteed.

ARTICLE 24 - Any dispute arising from the implementation of interconnection and access by one of the parties may be referred to the TRB.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

SECTION II
CONTENT OF THE INTERCONNECTION AND ACCESS CATALOGUE

ARTICLE 25 - (1) Operators of electronic communications networks open to the public who hold a concession shall be required to draw up, under the conditions laid down in their specifications, technical and pricing offers for interconnection or access in a document known as the interconnection and access catalogue, corresponding to each of the legal regimes of applicants for interconnection and/or access.

(2) The interconnection and access offers provided for in paragraph 1 above must be sufficiently detailed to meet the needs of the operators requesting them.

ARTICLE 26 - The offers included in the interconnection and access catalogue shall contain the conditions relating to operators' interconnection and access requirements, taking into account the rights and obligations specific to each operator.

ARTICLE 27 - The interconnection and access catalogue of a dealer intended for other dealer shall specify the services provided, which shall include in particular:

- emergency call services;
- switched traffic routing services, offering technical access and tariff options designed to implement the principle of wireline local loop unbundling, where applicable;
- traffic routing services;
- transmission capacity leasing services;
- additional services and the terms and conditions for the provision of these services;
- billing services on behalf of third parties;
- leased line termination service;
- the national roaming service;
- the provision of sites, underground ducts, antenna supports and energy sources.

ARTICLE 28 - The interconnection and access catalogue of a concession operator intended for other concession operators shall determine the technical conditions, which shall include in particular:

- measures guaranteeing the resilience and operational security of networks, the maintenance of network integrity, the interoperability of services and the protection of data;
- a description of all the physical points of interconnection and access and the conditions of access to these points, for the purposes of physical co-location, where the interconnection and access link is provided by a third party operator;
- the arrangements for implementing number portability and carrier selection to ensure equal access;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- a full description of the proposed interconnection and access interfaces, in particular the signalling protocol used at these interfaces and the conditions for its implementation;
- operating and interoperability test procedures for networks and services and certification of data protection methods;
- the conditions for sharing facilities linked to the physical connection of the networks;
- the technical conditions for the provision of interconnection and access links, including in particular the offer to third party operators of physical and logical access to the interconnection and access points of these operators and, in case the third party operator does not wish to provide this link, the technical and financial conditions for its provision by these operators;
- the designation of the interconnection and access points and the sites proposed for sharing, their location, their characteristics and a description of the physical arrangements for interconnecting them.

ARTICLE 29 - The interconnection and access catalogue of a concession operator intended for other concession operators shall set out the tariff conditions, which shall include in particular:

- pricing information provided at the interconnection or access interface;
- commercial and financial relations, in particular billing and collection procedures and payment terms;
- interconnection or access tariffs, taking into account medium and long-term cost increases and/or decreases;
- tariffs for the establishment and use of the interconnection or access, including tariffs for the provision of sites and energy sources for equipment located on the interconnection or access provider's right-of-way;
- procedures for determining the variable costs associated with establishing the interconnection or access.

ARTICLE 30 - The interconnection and access catalogues of concession operators intended for operators other than concession operators, in particular, operators holding licences and/or declaration receipts, shall include the services and elements provided for in articles 27, 28 and 29 above and shall include:

- technical traffic routing, specifying in particular the interconnection and access points accessible;
- tariffs for the routing of traffic, indicating in particular the cases in which the service provider is remunerated by the concession operator, the methods of repayment and the revenue distribution keys;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- technical and pricing terms for leasing capacity for interconnection or access links between the supplier's site and the concession holding operator's nearest interconnection or access point.

ARTICLE 31 - The services offered by operators of electronic communications networks open to the public, other than those referred to in Articles 27, 28, 29 and 30 of this Decree, shall be subject to non-discriminatory, reasonable and justified tariffs approved in advance by the TRB.

SECTION III
CONTENT OF INTERCONNECTION AND ACCESS AGREEMENTS

ARTICLE 32 - Interconnection and access to the various electronic communications networks open to the public shall be the subject of a private law agreement between the parties, specifying the technical, financial and administrative conditions laid down by the provisions of this Decree.

ARTICLE 33 - The interconnection agreement shall respect the principles of transparency, objectivity and non-discrimination.

ARTICLE 34 - The interconnection and access agreement shall specify in particular:

- commercial and financial relations, in particular the applicable tariffs for interconnection and access services, billing and collection procedures, as well as payment conditions;
- transfer of essential information between the two operators and the corresponding frequency or periods of notice;
- procedures to be applied in the event of a proposed change to the interconnection and access offer by one of the parties;
- definitions and limits of the liability and compensation system;
- any intellectual and industrial property rights;
- the obligation to refer to the TRB in the event of a dispute.

ARTICLE 35 - (1) The interconnection and access agreement shall include the following sections in particular:

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- general provisions;
- establishment of interconnection and access;
- system conformity;
- operational security;
- implementation of the interconnection and access service;
- minimum end-to-end quality of service;
- clauses relating to breach, suspension and cancellation of the offer;
- clauses relating to the security of personnel and the protection of systems and data;

- authorised representatives;
- the procedures for implementing interconnection and access;
- the language in which the agreement is drawn up;
- the obligations of the parties;
- dispute resolution clauses;
- confidentiality clauses;
- penalties for breaches of contractual clauses;
- clauses relating to the treatment of cases of force majeure;
- the duration and effective date of the agreement, as well as the conditions for amending, renewing and terminating it;
- financial clauses;
- the procedures for mutual exchanges of information and the advance notice required in the event of modifications to the system of one interconnected operator obliging the other interconnected operator to adapt its own facilities.

(2) The tariffs applicable under interconnection and access agreements shall be those approved annually by the TRB in the interconnection and access catalogues.

ARTICLE 36 - The interconnection and access agreement shall specify, as part of the description of the interconnection and access services provided and the corresponding remuneration, the following information:

- a description of the services provided by the parties;
- the conditions of access to the basic service: switched traffic and, for network operators, leased lines;
- the guaranteed level of service quality and the co-ordination measures for monitoring service quality;
- conditions of access to additional services;
- billing services on behalf of third parties;
- transit services;
- terms and conditions for the routing of back-up and emergency communications;
- the conditions for sharing facilities linked to the physical connection of the networks.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

ARTICLE 37 - The interconnection and access agreement shall mention, as part of the technical characteristics of interconnection and access services, the following information:

- measures implemented to ensure that users have equal access to the different networks and services;
- measures to ensure compliance with the essential requirements;
- a full description of the interconnection and access interface;
- charging information provided at the interconnection and access interface;
- the quality of the services provided, particularly in terms of availability, security, resilience, efficiency and synchronisation;

- traffic routing and planning arrangements.

ARTICLE 38 - The traffic routing and planning procedures provided for in Article 37 of this decree shall include in particular:

- the principles for routing calls from one network to another;
- the rules for ordering and testing interconnection or access capacity;
- test plans for switching, transmission and signalling;
- conditions for commissioning services:
    - traffic forecasting and interconnection or access interface layout procedures;
    - procedure for identifying leased lines ends;
    - lead time for service availability.
- the quality of the services provided in terms of availability, security, resilience, efficiency and synchronisation;
- procedures for locating, identifying and rectifying faults;
- the sizing of interface equipment and common components in each network in order to maintain quality of service;
- the information that the parties must communicate to each other on the configuration of their respective networks, as well as the equipment and standards used at interconnection or access points so as to facilitate and accelerate interconnection or access;
- the technical measures required to implement complementary services;
- future projections, mainly concerning possible extension and removal of interconnection or access points, network developments and improvement in quality of service;
- the schedule of meetings between the two parties, during which all the technical clauses and/or changes required to improve the operation of the interconnection or access shall be examined closely for each interconnection or access point.

ARTICLE 39 - Interconnection and access agreements shall specify, as part of the procedures for implementing interconnection and access, the following information:

- the conditions for commissioning the services, the procedures for forecasting traffic and setting up interconnection and access interfaces, the procedure for identifying the ends of leased lines, the deadlines for making the services available;
- the designation of interconnection and access points and a description of the physical arrangements for interconnecting with them;
- the reciprocal dimensioning arrangements for interface equipment and common elements in each network, in order to maintain the quality of service provided for in the interconnection and access agreement and compliance with the essential requirements;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- the procedures for testing the operation of interfaces and the interoperability of services;
- procedures for intervention and fault clearance.

ARTICLE 40 - **(1)** The TRB shall issue its assent prior to the signing of any interconnection and access agreement with a foreign operator with a view to routing international traffic.

(2) Any interconnection and access agreement concluded with a foreign operator with a view to routing international traffic shall be communicated to the TRB.

ARTICLE 41 - The TRB shall have a maximum period of forty-five (45) days from the date of receipt of the draft agreement to issue the assent referred to in Article 40 above. After this period, the assent shall be deemed to have been granted.

SECTION IV
INTERCONNECTION AND ACCESS COSTS

ARTICLE 42 - Interconnection and access costs shall be based on the following principles:

- the direct or indirect alignment of costs with the service actually rendered in terms of interconnection and access;
- the increase in economic efficiency which takes into account, on the one hand, the investments necessary for the renewal of the network on the basis of the best possible technologies and, on the other hand, the need for optimal dimensioning of the latter with a view to promoting quality service.

ARTICLE 43 - The costs of interconnection and access services shall comprise:

- general network costs relating to network elements used both by the operator for services rendered to its own users and for interconnection and access services;
- costs specific to interconnection services, directly incurred by interconnection and access services alone;
- common costs, which do not fall under one of the preceding categories.

ARTICLE 44 - **(1)** Costs specific to interconnection and access services shall be charged in full to the interconnection or access services.

(2) Costs specific to the operator's services other than those relating to interconnection and access, in particular commercial costs, shall be excluded from the cost-base for interconnection and access services.

(3) The commercial costs referred to in paragraph 2 above shall include advertising, marketing, sales, sales administration excluding interconnection, billing and collection except for interconnection.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(4) The costs charged to network operators and providers of electronic communications services shall take into account the rights and obligations specific to each of these categories of operator.

SECTION V
INTERCONNECTION AND ACCESS TARIFFS

ARTICLE 45 - Interconnection and access tariffs shall be based on the following principles:

- the inclusion of a fair contribution, based on the principle of proportionality, to costs that are common to both interconnection and access services and to other services, in compliance with the principles of cost relevance;
- the inclusion of a fair return on investment;
- the possibility of applying tariffs with hourly modulation to take into account congestion on the operator's general network.

ARTICLE 46 - Tariffs shall be broken down into at least:

- a tariff reflecting the cost of the elements of the switch which are immobilised for access to this switch;
- a tariff reflecting the cost of using the transmission elements between the switch and the interconnection and access point to which the requesting operator is already interconnected; and
- a tariff reflecting the cost of routing calls from the switch.

CHAPTER III
PROVISIONS RELATING TO INFRASTRUCTURE SHARING

SECTION I
REQUEST FOR AND OBLIGATION TO SHARE INFRASTRUCTURE

ARTICLE 47 - An operator may use the infrastructure belonging to another electronic communications network operator or to a public service concession holder for the installation of its network.

ARTICLE 48 - **(1)** The request for infrastructure sharing shall be submitted to the operator, owner of the infrastructure, by registered letter or by any other means in writing, with a copy to the TRB, in duplicate, each copy comprising:

- the information sheet provided by the operator, duly filled, signed and stamped at the rate in force;
- a copy of the operating licence of the applicant.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(2) The information sheet referred to in paragraph 1 above shall be published in advance by the TRB, and shall specify the following information:

- the corporate name or surname and first names;
- the certificate of registration into the Trade and Personal Property Credit Register;
- tax registration certificate;
- full address;
- the equipment(s) for which sharing is solicited;
- the location and characteristics of the site on which sharing is solicited;
- details of the characteristics of the equipment to be installed (weight, size, type of energy, ground space to be occupied, energy consumption);
- the requested height of the pylon;
- the planned commissioning date.

(3) For each application received, the operator, owner of the shared infrastructure shall be required to forward to the applicant, with a copy to the TRB, a letter acknowledging receipt, within five (5) working days following receipt of the application.

ARTICLE 49 - (1) Operators who receive a request to share infrastructure shall have a maximum period of fifteen (15) days, from the date of issue of the acknowledgement of receipt referred to in paragraph 3 of Article 48 of this decree, to agree with the applicant on the technical, financial and administrative terms prior to sharing.

(2) The terms referred to in paragraph 1 above shall be laid down in a draft agreement drawn up in accordance with the provisions of this decree.

(3) When defining the terms and conditions referred to in paragraph 1 above, the operator supplying the shared infrastructure may request additional information from the applicant or any other occupants of the site. In all cases, the processing time may not exceed thirty (30) days from the deadline stipulated in paragraph 3 of Article 48 of this decree.

(4) In the event of non-compliance with the deadlines stipulated in paragraphs 1 and 3 above, the applicant may refer the matter to the TRB.

ARTICLE 50 - (1) The draft agreement referred to in paragraph 2 of Article 49 above shall be initialled by both parties and forwarded within a week by each co-contractor to the TRB for approval, by registered letter with acknowledgement of receipt or by any other means in writing.

(2) The TRB shall have a period of thirty (30) days to act on the draft agreement referred to in paragraph 1 above, by registered letter with acknowledgement of receipt or by any means in writing.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(3) The parties shall have a period of fifteen (15) days to provide the TRB with additional information or to incorporate into their agreements the amendments instructed by the TRB. After this deadline, they shall be liable to sanctions provided for by the regulations in force.

(4) In the event that additional information or changes are required, the period stipulated in paragraph 2 above shall be extended to sixty (60) days.

ARTICLE 51 - In the event of a justified refusal by the TRB, the agreement may not be signed.

ARTICLE 52 - **(1)** The operator supplying the shared infrastructures shall be required to make the infrastructure sharing effective within a maximum period of fifteen (15) days from the date of receipt of the agreement approved by the TRB.

(2) The period referred to in paragraph 1 above may be extended by thirty (30) days at most in case the site sought for sharing is occupied by several other users and the owner of the site is required to consult them, in order to avoid subsequent technical difficulties in the execution of the contract.

(3) In the event of non-compliance with the deadlines stipulated in paragraphs 1 above, the applicant may refer the matter to the TRB.

ARTICLE 53 - The TRB shall ensure the effective sharing of infrastructure within the deadlines stipulated by this decree.

ARTICLE 54 - **(1)** A request for infrastructure sharing may not be refused if it does not create any disturbance or other technical difficulty with regard to the proper functioning of the network and the proper operation of the service.

(2) The operator who refuses to share infrastructure shall justify such refusal and notify the applicant. The TRB must be informed of refusal decisions by registered letter with acknowledgement of receipt or by any written means.

ARTICLE 55 - The TRB may, if it deems it urgent to act in order to preserve competition and protect the interests of users, request, subject to penalties for each day of delay, that sharing be done forthwith pending the conclusion of an agreement relating thereto.

ARTICLE 56 - The TRB may require the parties to amend a sharing agreement within a period which may not exceed sixty (60) days, especially when conditions for competition and/or interoperability of the networks are not guaranteed.

ARTICLE 57 - In the event of a dispute arising from the refusal to share infrastructure, the applicant may table the matter to the TRB, in accordance with the regulations in force.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

SECTION II
CONTENT OF THE INFRASTRUCTURE SHARING CATALOGUE

ARTICLE 58 - **(1)** Operators, owners of the infrastructure shall be required to draft a technical and pricing offer for infrastructure sharing, in accordance with the conditions laid down in their specifications.

(2) The infrastructure sharing offers provided for in paragraph 1 above must be sufficiently detailed to meet the needs of operators who request them.

ARTICLE 59 - The offers included in the infrastructure-sharing catalogue shall contain the conditions relating to the infrastructure sharing requirements of operators, in view of their rights and obligations.

ARTICLE 60 - The infrastructure sharing catalogues shall determine the services provided, including:

- the various sources of energy;
- maintenance of equipment and installations;
- guard services of the sites;
- the service for renting space for pylons and masts;
- the service in charge of making premises, underground ducts and other co-location areas available for the installation of active equipment;
- the air-conditioning service;
- the security service.

ARTICLE 61 - The services offered by the operator, owner of the infrastructure with the exception of those mentioned in article 60 above, must be subject to non-discriminatory, reasonable and justified tariffs approved in advance by the TRB.

ARTICLE 62 - The infrastructure sharing catalogues shall determine the services provided, including:

- a description of all the physical access points and the conditions of access to these points for the purposes of physical co-location;
- conditions for sharing installations linked to the physical connection of the networks;
- the designation of the access points and sites proposed for sharing, their location, their characteristics, and a description of the physical arrangements for sharing;
- a description of all the equipment open to sharing, as well as the technical conditions of access.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

ARTICLE 63 - The infrastructure sharing catalogues shall determine the services provided, including:

- pricing information provided for each site open to sharing;
- commercial and financial relations;
- tariffs linked to sharing taking into consideration increases and/or decreases in long-term costs;
- tariffs for the establishment and use of access, including tariffs for the provision of sites and energy sources;
- the methods for determining the variable costs associated with infrastructure sharing;
- additional billing elements.

SECTION III
CONTENT OF INFRASTRUCTURE SHARING AGREEMENTS

ARTICLE 64 - Infrastructure sharing shall be the subject of a private law agreement between the parties, which specifies the administrative, technical and financial conditions provided for in this decree.

ARTICLE 65 - The infrastructure sharing agreement shall comply with the principles of transparency, objectivity and non-discrimination.

ARTICLE 66 - The infrastructure sharing agreement shall include, among other things, the following general principles:

- commercial and financial conditions, in particular the applicable tariffs for services, invoicing and collection procedures, as well as payment conditions;
- the transfer of essential information between the two parties and the corresponding frequency or periods of notice;
- the procedures applicable in the event of a proposed change to the offer by one of the parties;
- the definitions and limits of liability and compensation;
- the obligation to refer to the TRB in the event of a dispute.

ARTICLE 67 - The infrastructure sharing agreement shall include the following sections:

- general provisions;
- the establishment of infrastructure sharing;
- conformity of equipment and installations;
- operational security;
- institution of the infrastructure sharing service;
- minimum quality of service assured;
- provisions relating to the breach, suspension and cancellation of the offer;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- provisions relating to the safety of personnel and the protection of systems;
- authorised representatives;
- the procedures for conducting infrastructure sharing;
- the language in which the agreement is drafted;
- the responsibilities of the parties;
- provisions for the settling of disputes;
- confidentiality clauses;
- penalties for breach of contractual clauses;
- cases of force majeure;
- the duration and date on which the agreement takes effect, as well as the conditions for amending, renewing and terminating the agreement;
- financial clauses;
- the procedures for the mutual sharing of information and the advance notices required when one party renews its equipment, obliging the other party to adapt its installations.

(2) Notwithstanding the provisions of paragraph 1 above, the tariffs applicable under infrastructure sharing agreements shall be those approved annually by the TRB in the infrastructure sharing catalogues.

ARTICLE 68 - The infrastructure sharing agreement shall specify, under the description of the sharing services provided and the corresponding remuneration, the following information:

- a description of the services provided;
- the guaranteed level of service quality and the co-ordination measures for monitoring service quality;
- conditions to access additional services.

ARTICLE 69 - The infrastructure sharing agreement shall specify, as part of the technical characteristics of the services provided, the following information:

- the measures implemented to ensure equal access by users to the various services;
- measures to ensure compliance with the essential requirements;
- the quality of the services provided, notably availability, security and efficiency.

ARTICLE 70 - The infrastructure sharing agreement shall specify, under terms and conditions for implementing the service, the following information:

- conditions for commissioning services;
- procedures for intervention and fault clearance.

ARTICLE 71 - The minimum technical clauses of an infrastructure sharing agreement shall contain:

- the complete list of users of the shared infrastructure;

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

- a full description of the infrastructure, its technical characteristics and its size;
- the conditions to access the infrastructure;
- the conditions for sharing the infrastructure with regard to space, management and maintenance;
- the information that the parties must communicate to each other on a regular basis to ensure the management of the infrastructure;
- forecasts for the operation of the infrastructure by users;
- conditions relating to compliance with radio electric easements.

ARTICLE 72 - The minimum administrative and financial clauses of an infrastructure sharing agreement shall involve:

- invoicing and collection procedures as well as payment methods;
- definitions and limits as concerns liability and compensation between users of the infrastructure;
- the methods of distributing costs of infrastructure sharing.

ARTICLE 73 - Operators shall be required to comply with the standards necessary for the installation of their network on the installations or structures of other operators.

SECTION IV
INFRASTRUCTURE SHARING COSTS

ARTICLE 74 - Infrastructure sharing costs for operators shall hinge on the following principles:

- the direct or indirect alignment of costs with the service actually provided with regard to infrastructure sharing;
- the increase in economic efficiency which takes into account, on the one hand, the investments required to renew equipment and installations based on the best possible technologies and, on the other hand, the need for optimal network sizing with a view to promoting quality service.

ARTICLE 75 - The cost of the infrastructure sharing service shall comprise:

- direct costs generated by the provision of the infrastructure sharing service;
- indirect costs which are not directly generated by the provision of the infrastructure sharing service, but which are especially necessary for the management and marketing of this service.

SECTION V
INFRASTRUCTURE SHARING TARIFFS

ARTICLE 76 - Infrastructure sharing tariffs shall hinge on the following principles:

- the inclusion of direct and indirect costs charged to the infrastructure sharing service;
- the inclusion of a fair return on investment.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

CHAPTER IV
PROVISIONS RELATING TO INTERCONNECTION, ACCESS AND INFRASTRUCTURE SHARING

SECTION I
APPROVAL AND PUBLICATION OF CATALOGUES

ARTICLE 77 - **(1)** Each year, the TRB shall establish a list of services to be included in a technical and tariff offer for interconnection and access, as well as a list of those to be included in a technical and tariff offer for infrastructure sharing.

(2) TRB decisions establishing the lists of services referred to in paragraph 1 above shall be arrived at no later than the first quarter of the year N-1, and for the list of catalogues, the year N.

(3) The operators concerned shall be required to include in their catalogues the offers contained in the lists referred to in paragraph 1 above.

ARTICLE 78 - Operators of electronic communications networks, concession holders or any operator identified by the TRB as dominant on a given market segment, shall be required, every year, to design and submit to the TRB for approval, one or more interconnection, access and infrastructure sharing catalogues intended for other operators.

ARTICLE79 - Any operator of passive infrastructure backing up electronic communications networks shall be required, every year, to design and submit to the TRB for approval, one or more infrastructure sharing catalogues intended for other operators.

ARTICLE 80 - **(1)** The catalogues referred to in articles 78 and 79 above shall be submitted to the TRB for approval no later than the second quarter of the year N-1.

(2) Draft catalogues submitted to the TRB for approval must be accompanied by all supporting documents enabling the assessment of the respect of the criteria of objectivity, transparency and cost-orientation of tariffs.

ARTICLE 81 - The TRB shall approve the catalogues for the year N during the fourth quarter of the year N-1 at the latest.

ARTICLE 82 - **(1)** Following approval by the TRB, the operators referred to in articles 78 and 79 above shall have a period of 30 days within which they shall be required to publish their catalogues in a journal of legal notices, a regularly published general newspaper as well as on their websites.

(2) The operators referred to in paragraph 1 above shall be required to make their approved catalogues available on their websites in downloadable format at all times. Failure to do so, they shall be liable to sanctions provided for by the regulations in force.

(3) In case the operator fails to publish the catalogues, the TRB shall publish the catalogues at the expense of the operator, within a maximum period of fifteen (15) days from the expiration of the period referred to in paragraph 1 above.

(4) In any event, the TRB shall make the approved catalogues available on its website and in downloadable format.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

ARTICLE 83 - (1) The TRB may at any time request the amendment of a catalogue when it considers that the conditions of competition and interoperability of electronic communications networks and services are not guaranteed.

(2) The TRB, after verifying the technical capacity of the operator, may decide to add, alter or delete services included in the catalogue in order to implement the principles of non-discrimination, cost-orientation of tariffs or to better meet the needs of the community of operators and providers of electronic communications services.

ARTICLE 84 - (1) Any condition of interconnection, access and infrastructure sharing not included in the agreement must be indicated in the operator's catalogue.

(2) Operators shall be required to inform applicants of any changes to their offers previously approved by the TRB, at least ninety (90) days before they are made, unless otherwise decided by the TRB.

SECTION II

COMMUNICATION OF INFORMATION CONTAINED IN AN AGREEMENT

ARTICLE 85 - When transmitting draft agreements and their annexes to the TRB, operators shall specify the information contained therein which they consider to be covered by commercial secrecy.

ARTICLE 86 - The TRB may, at the request of the operator providing interconnection and access or infrastructure sharing services, communicate to interested third parties the information contained in the agreements, except for information covered by commercial secrecy.

ARTICLE 87 - Operators in possession of information obtained as part of a negotiation or execution of an interconnection and access or infrastructure-sharing agreement may only use this information for the purposes explicitly stated at the time of its communication.

ARTICLE 88 - The information referred to in Article 86 above may not be communicated to any third parties, subsidiaries or partners for whom it could constitute a competitive advantage.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

SECTION III

COSTS

ARTICLE 89 - Operators providing interconnection and access, as well as those providing infrastructure-sharing services, must keep analytical accounts enabling the identification of the costs of their different activities.

ARTICLE 90 - The operators referred to in Article 89 above shall make available to the TRB, latest at the end of the second quarter of year N, the accounting data for year N-1, in a single format designed for this purpose by the TRB and forwarded to the operators latest at the end of the first quarter of year N.

ARTICLE 91 - **(1)** Cost accounting shall be audited every two (2) years by an approved independent body chosen by the TRB, following a call for tenders.

(2) The costs of the audit shall be borne by the audited operators and shall be factored into the costs of infrastructure sharing and interconnection and/or access services as appropriate.

SECTION IV

TARIFFS

ARTICLE 92 - The tariff conditions of the agreements shall comply with the principles of objectivity, transparency and non-discrimination. They must not lead to excessive charges being imposed on the beneficiaries.

ARTICLE 93 - **(1)** The tariffs for services offered by operators, whether they are included in their offers or offered in addition, shall remunerate the actual use of the network or of the equipment and installations, as the case may be, and shall reflect the corresponding costs.

(2) Operators must be able, at any time, to demonstrate that their tariffs effectively reflect costs.

ARTICLE 94 - **(1)** For services contained in the agreement but not included in the catalogue, the TRB may request from operators any information enabling it to assess whether the tariffs for these services reflect costs.

(2) In the event that the tariffs referred to in paragraph 1 above do not reflect costs, the TRB shall, by decision, set the applicable tariffs pending amendment of the catalogues.

ARTICLE 95 - The TRB may define the conditions for decreasing tariffs, to encourage economic efficiency, in the light of international references for tariffs and costs related to interconnection, access or infrastructure sharing.

CHAPTER V

ALTERNATIVE INFRASTRUCTURE

ARTICLE 96 - **(1)** Operators of alternative infrastructure shall be required to transfer to the State, under the supervision of the administrative structure in charge of telecommunications, any surplus capacity they may have after having used the infrastructure intended for their own needs, and/or rights of way on public land, easements, rights of way, civil engineering works, trunk lines and ducts, as well as any high points they may have.

(2) Surplus capacities of alternative infrastructure operators shall be transferred to the State according to terms agreed between the parties, within the framework of a memorandum of understanding signed between the State and the alternative infrastructure operator.

SERVICES DU PREMIER MINISTRE
SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
ET DES REQUÊTES
COPIE CERTIFIÉE CONFORME

(3) The capacities referred to in paragraph 2 above shall be reassigned to the operator designated to manage the electronic communications infrastructure on terms agreed by the parties, under a retrocession agreement signed between the State and the operator.

CHAPTER VI

MISCELLANEOUS, TRANSITIONAL AND FINAL PROVISIONS

ARTICLE 97 - **(1)** Where interconnection, access or the provision of an infrastructure-sharing service jeopardizes the proper functioning of an operator's network or obstructs compliance with the essential requirements, the operator, after technical verification of its network, shall inform the TRB thereof within 24 hours.

(2) The TRB may, where necessary, order the suspension of the interconnection, access or infrastructure sharing service. It shall inform the parties and define conditions for its reinstatement.

(3) No operator may suspend, in whole or in part, interconnection, access or provision of an infrastructure-sharing service without prior decision by the TRB.

ARTICLE 98 - Interconnection and access catalogues, infrastructure-sharing catalogues, interconnection and access agreements and infrastructure-sharing agreements respectively approved or concluded prior to the signing of this decree shall maintain their period of validity.

ARTICLE 99 - Specific texts of the Minister in charge of telecommunications shall specify, where necessary, the procedures for the application of this decree.

ARTICLE 100 - This decree, which repeals all previous provisions repugnant thereto, shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

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SECRÉTARIAT GÉNÉRAL
DIRECTION DES AFFAIRES ADMINISTRATIVES
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JOSEPH DION NGUTE
PRIME MINISTER,
HEAD OF GOVERNMENT